

Calendar Line # 8
Case Name Diana Guadalupe Chiapana vs Jaspinder Grewal et al.
Case No. 25CV470037
Demurrer Before the court is defendants’ demurrer to complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> In 2019, Dominic DeBiaso pursued his former employer, Care Intranet Inc. (“CII”), for unpaid wages. (Complaint, ¶4). On February 26, 2019, a hearing was held at the offices of the California Labor Commissioner. (Complaint, ¶5). Defendant Puneet D. Grewal (“Puneet”)²³, represented by counsel, was found not individually liable and was dismissed. (Complaint, ¶¶6 – 7). Defendant Jaspinder P. Grewal (“Jaspinder”) was not served in the Labor Commissioner matter. CII was served, but did not put on a defense. (Complaint, ¶10). The Labor Commissioner issued an “Order, Decision or Award” on May 8, 2019 in favor of Dominic DeBiaso and against CII. (Complaint, ¶11 and Exh. 1). Judgment based upon the Labor Commissioner’s Order was entered in Santa Clara County Superior Court on July 22, 2019 in the total amount of \$36,203.77 (“Judgment”) in case number 19CV352304 (“Underlying Action”). (Complaint, ¶12 and Exh. 2). On November 9, 2020, the original judgment creditor, Dominic DeBiaso, transferred and assigned all rights, title, and interest in the Judgment to Phillip Erkenbrack. (Complaint, ¶13). On November 8, 2023, Phillip Erkenbrack transferred and assigned all rights, title, and interest in the Judgment to plaintiff Diana C. Guadalupe Chipana dba Wealth Recovery Solutions (“Plaintiff”). (Complaint, ¶14). No money has been paid on the Judgment and, as of May 18, 2025, the balance has risen to \$57,301.14 with interest continuing to accrue at 10% per annum. (Complaint, ¶¶15 – 16). Plaintiff now brings a separate and independent action against defendants Jaspinder and Puneet (collectively, “Grewals” or “Defendants”) on an alter ego theory to enforce the prior Judgment against the corporation, CII. On July 8, 2025, Plaintiff filed a verified complaint against defendant Grewals asserting a single cause of action “For Alter Ego Liability to Add Defendants Jaspinder P. Grewal and Puneet D. Grewal as Additional Judgment Debtors.” On October 14, 2025, defendant Grewals filed the motion now before the court, a demurrer to Plaintiff’s Complaint. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (<i>Hahn v. Mirda</i> (2007) 147 Cal.App.4th 740, 747 (<i>Hahn</i>)). When considering demurrers, courts accept all well pleaded facts as true. (<i>Fox v. JAMDAT Mobile, Inc.</i> (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (<i>Piccinini v. Cal. Emergency Management Agency</i> (2014) 226 Cal.App.4th 685, 688, citing <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318 (<i>Blank</i>)).

²³ The court refers to defendants by their first names for the sake of clarity and means no disrespect.